

25AVCV01279 25AVCV01279

County: los-angeles

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Case Number: 25AVCV01279 Hearing Date: July 21, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CHRISTOPHER BUI, an individual, and RICHARD LAM, an individual,

Plaintiffs,

v.

HRANT DANAKIAN, an individual, and DOES 1 through 10,

Defendants.

Case Number 25AVCV01279

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 21, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract case arising from Defendant Hrant Danakian's (Defendant) alleged default on his contractual obligations to pay Plaintiffs Christopher Bui (Bui) and Richard Lam (Lam) (together Plaintiffs) for the purchase of their membership interests in Forte Health, LLC. Presently, Plaintiffs move the Court for an order compelling further discovery responses to the first set of Special Interrogatories, Form Interrogatories, and Requests for Production.

On September 30, 2025, Plaintiffs filed their complaint against Defendant and DOES 1 through 10, asserting three causes of action for (1) Breach of Contract (Promissory Notes), (2) Breach of Contract (Purchase Agreements), and (3) Judicial Foreclosure of Security Interest.

Specifically, Plaintiffs allege that on May 1, 2023, Defendant entered into two Membership Interest Purchase Agreements (Agreements) with Bui and Lam, in which Plaintiffs agreed to sell, and Defendant agreed to purchase, Bui's 25% membership interest and Lam's 25% membership interest in Forte Health, LLC (Forte). (Compl., ¶ 8.) Defendant then executed and delivered to Plaintiffs two Security Promissory Notes (Notes) dated May 1, 2023, each in the principal amount of \$125,000.00. (Compl., ¶ 9.) To secure Defendant's obligations under the Notes, Defendant entered into a Security Agreement dated May 1, 2023, with Plaintiffs named as the secured party. (Compl., ¶ 10.) Under the Security Agreement, Defendant granted Plaintiffs a continuing security interest in all of Defendant's right, title, and interest in his 50% membership interest in RCH Holdings, LLC (RCH), as well as Defendant's share of RCH's real estate holdings, dividends on pledged securities, and products and proceeds of pledged securities. (Compl., ¶ 11.) Plaintiffs allege they have performed all conditions, covenants, and promises required under the terms of the Agreements, Notes, and Security Agreement, including the transfer of their membership interests in Forte to Defendant, but that Defendant has breached the terms of the Agreements and Notes by failing to make the required monthly payments since December 1, 2024. (Compl., ¶¶ 12-13.)

On December 2, 2025, Defendant filed his answer, asserting 13 affirmative defenses.

On February 23, 2026, Plaintiffs filed a motion to compel Defendant's initial responses to set one of Special Interrogatories, Form Interrogatories, and Requests for Production propounded on Defendant.

On April 14, 2026, the Court granted Plaintiffs' motion to compel initial discovery responses with sanctions.

On April 16, 2026, Plaintiffs filed the present motion to compel further responses to the first set of Special Interrogatories, Form Interrogatories, and Requests for Production, and request monetary sanctions in the amount of \$4,625.00.

On April 24, 2026, Defendant filed a motion for reconsideration of the April 14, 2026 Order granting Plaintiffs' motion to compel initial discovery responses. The hearing on this motion is set for August 11, 2026.

On July 14, 2026, Plaintiffs filed their reply in support of their motion to compel further discovery responses, noting Defendant's non-opposition to the motion.

No opposition to Plaintiffs' motion to compel further responses has been filed.

On July 15, 2026, Defense counsel filed a declaration requesting that the hearing on the motion to compel be continued to August 11, 2026, on which date Defendant's motion for reconsideration will be heard. The Court declines this request.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Plaintiffs’ counsel Spencer K. Schneider (Schneider) declares he sent Defense counsel a detailed five-page meet and confer letter addressing the deficiencies in Defendant’s responses on March 5, 2026, which went unanswered. (Schneider Decl., ¶ 5.) Schneider states he then emailed Defense counsel on March 16, 2026, requesting to participate in an Informal Discovery Conference to resolve the dispute without motion practice, which also went unanswered. (Schneider Decl., ¶ 6.) Schneider states he then asked Defense counsel to provide complete discovery responses within two weeks and to stipulate to an extension of the 45-day deadline to provide Defendant sufficient time to provide supplemental responses as ordered to avoid motion practice on April 14 and 15, 2026. (Schneider Decl., ¶ 9.) Schneider states Defense Counsel refused to supplement the responses or grant the extension unless Plaintiffs agreed to waive the sanctions ordered by the Court, stating “If you waive the order for sanctions or agree to an amount not to exceed \$1,000, I will agree to supplement and extend the deadline.” (Schneider Decl., ¶ 10.)

The Court finds these efforts are more than sufficient to satisfy the meet and confer requirement.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer “containing the information sought to be discovered”; (2) “an exercise of the party’s option to produce writings”; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, “the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be “evasive or incomplete” or if “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit “a concise outline of the discovery request and each response in dispute” in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“[I]n deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

Standard for Motions to Compel Further Discovery Responses – Requests for Production of Documents – Motions to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224 (disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531).)

A demanding party may move for an order compelling further response to RPDs if (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

If a party fails to serve a timely response to a request for production, the party waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a)(1)-(2).)

IV. Discussion

Application – Plaintiffs move for an Order compelling further, code-compliant discovery responses for set one of (1) special interrogatories, (2) form interrogatories, and (3) requests for production. Plaintiffs argue that this motion was necessitated by Defendant's refusal to engage in the meet and confer process, refusal to participate in an Informal Discovery Conference, and refusal to comply with the Court's previous April 14, 2026 Order compelling Defendant to provide complete, verified, code-compliant responses without objections unless Plaintiffs first agreed to reduce the Court-ordered sanctions resulting from Defendant's previous failure to timely and properly respond to discovery. (Motion, p. 4:4-9.)

Plaintiffs served their First Set of Special Interrogatories, Requests for Production, and Form Interrogatories on January 6, 2026 via email to Reza Sina, counsel for Defendant. (Motion, p. 5:23-24.) Defendant failed to serve any responses by the statutory deadline. (Motion, p. 5:24-6:1.) Plaintiffs thereafter brought their motion to compel initial responses on February 23, 2026. On that same date, Defendant served unverified responses to Plaintiffs' discovery requests. (Schneider Decl., ¶ 3.) Verifications were not signed or served until March 3, 2026. (Schneider Decl., ¶ 4.)

The Court granted Plaintiffs' motion to compel on April 14, 2026. There was no finding that Defendant's failure to timely respond was the result of mistake, inadvertence, or excusable neglect, nor did Defendant file an opposition asserting such facts. As a preliminary matter, the Court notes that Defendant has waived all objections to the Special Interrogatories, Form Interrogatories, and Requests for Production.

a. Special Interrogatories

Plaintiffs move for further responses as to Special Interrogatories Nos. 1-14 and 16-24. (Motion, p. 2:4; See Generally Separate Statement.) Plaintiffs argue that Defendant's response that the facts requested in certain interrogatories are "under investigation" constitutes improper evasion, as these interrogatories ask Defendant to state facts supporting the affirmative

defenses pled in Defendant's answer. (Motion, p. 6:11-13.) Plaintiffs argue that if Defendant currently possesses no facts to support his affirmative defenses, he must so declare under oath. (Motion, p. 6:13-15.)

Plaintiffs also argue that Defendant improperly invoked Code of Civil Procedure section 2030.230 in response to Special Interrogatories Nos. 2, 3, 19, 23, and 24 by pointing generally to "documents (emails) concurrently produced." (Motion, p. 6:17-22.) Plaintiffs argue that Code of Civil Procedure section 2030.230 applies only when an answer necessitates the compilation, abstract, or summary of the responding party's own business records, and does not serve to permit a party to avoid answering a contention interrogatory by generally referencing an incomplete production response. (Motion, p. 6:18-22.) The Court also notes that due to Defendant's failure to timely serve verified discovery responses also precludes Defendant from any right he had to exercise the option under Section 2030.230 to produce writings in response to interrogatories.

Plaintiffs further object to Defendant's responses to Special Interrogatories Nos. 7, 9, 10, 11, 12, 13, 16, 17, and 18 on the grounds that Defendant's response that information about RCH is not within Defendant's personal knowledge, possession, custody or control is evasive because he owns a 50% membership interest in RCH, permitting him the right under California law to inspect and obtain the company's records. (Sep. Statement, p. 8:13-22.)

Plaintiffs challenge Defendant's response to Special Interrogatory No. 14 on the ground that Defendant is not permitted to identify only those business entities in which he currently holds a membership interest, directorship, or officer position which he deems relevant to this matter where Plaintiffs requested identification of all such entities. (Sep. Statement, p. 12:17-20.) Plaintiffs further argue Defendant waived any relevance objection in failing to provide timely responses. (Sep. Statement, p. 12:17-18.)

As to Special Interrogatory No. 1, Plaintiffs requested that Defendant state all facts supporting his contention that the Agreements were not valid or binding, to which Defendant responded that he had asserted various affirmative defenses in his Answer relating to the validity and enforceability of the Agreements. (Sep. Statement, p. 2:21-27.) Plaintiffs argue this response is evasive, incomplete, and non-responsive as it fails to state any fact supporting Defendant's contentions. (Sp. Statement, p. 3:2-5.)

Plaintiffs finally request further response as to Special Interrogatory No. 8 on the grounds that Defendant's response is evasive, as he does not admit, deny or state that he lacks information to do so after a diligent search, but rather, Defendant states he "neither admits nor denies" while claiming to be investigating the amounts of debts allegedly owed by him. (Sep. Statement, p. 14:20-23.)

The Court finds Defendant's responses are not code-compliant and are evasive. Defendant has not provided a code-compliant answer to any of the challenged interrogatories. Defendant has waived any right he had to produce writings in response to interrogatories under Code of Civil Procedure section 2030.230 and has waived any and all objections to the interrogatories by failing to provide timely discovery responses and failing to establish that his failure was the result of inadvertence, mistake, or excusable neglect. Further, Defendant has not opposed this request, and the requests regarding RCH appear relevant as RCH is the collateral for the alleged debt at issue.

The Court notes some discrepancies in the numbering of the Special Interrogatories for which Plaintiffs request further responses, namely numbers 4 and 6. Special Interrogatory No. 4 is not included on Plaintiff's Separate Statement, nor is No. 6. As such, the Court DENIES the request as to these two Interrogatories.

Accordingly, based on Plaintiff's Separate Statement, Plaintiff's request to compel further, code-compliant responses to Special Interrogatories Nos. 1, 2, 3, 5, 7, 8, 9, 10, 11, 12, 13, 14, 16, 17, 18, 19, 20, 21, 22, 23, and 24 is GRANTED.

b. Form Interrogatories

Plaintiffs also move to compel further responses to Form Interrogatories Nos. 2.6 and 50.3-50.6. (Motion, p. 2:5.)

As to Form Interrogatory No. 2.6, Plaintiffs argue Defendant's response does not answer the prompt. (Sep. Statement, p. 15:10.) The Court agrees.

As to Form Interrogatory No. 50.3, Plaintiffs argue Defendant's response contains purely boilerplate legal conclusions and Defendant must "state why performance was excused" by providing specific facts, identifying specific breaches, and identifying the specific conditions precedent that failed. (Sep. Statement p. 15:24-26. The Court agrees so far as the response does not identify any agreement excused.

As to Form Interrogatory No. 50.4, Plaintiffs argue Defendant's response that the matter is under investigation is improper and must provide facts currently known to him or admit that no termination occurred. (Sep. Statement, p. 16:12-13.) The Court disagrees. Defendant states that "Based on information presently available, [Defendant] is not aware of a formal termination of the agreements by mutual agreement, release, accord and satisfaction, or novation." This response satisfactorily answers the question.

As to Form Interrogatory No. 50.5, Plaintiffs argue Defendant pleaded affirmative defenses related to enforceability and therefore, cannot now claim the facts are under investigation, but must state facts presently known. (Sep Statement, p. 16:22-23.) The Court agrees in that Defendant failed to provide an answer to the question. Merely stating the facts are under investigation is not a code-compliant response.

As to Form Interrogatory No. 50.6, Plaintiffs argue that Defendant failed to identify specific language he contends is ambiguous and further response is needed. (Sep. Statement, p. 17:6-7.) The Court agrees that Defendant's response fails to sufficiently answer the question as to ambiguity in the complaint.

Accordingly, Plaintiffs' request for further responses to Form Interrogatories 2.6, 50.3, 50.5, and 50.6 is GRANTED. Plaintiff's request for further response to Form Interrogatory No. 50.4 is DENIED.

c. Requests for Production

Finally, Plaintiffs move for an order compelling further responses to Requests for Production Nos. 1-2. (Sep Statement, p. 17:12, 18:5.)

As to the Request No. 1, which seeks all bank statements for the accounts held in the name of RCH from May 1, 2023 to present, Plaintiffs argue that the objection is waived due to untimeliness, the response is incomplete as Defendant produced only a single bank statement for November of 2025, and Plaintiffs are part owners of RCH Holdings, meaning there is no privacy for documents to which Plaintiffs are legally entitled. (Sep. Statement, p. 17:25-18:3.)

As to Request No. 2, which requests all documents related to the closure of any bank account held by RCH, Plaintiffs argue Defendant's response must be supplemented, because although Defendant claimed he does not have any documents within his possession, custody, or control responsive to the request, he is a 50% owner, providing him the legal right to access and control these records. (Sep. Statement, p. 18:17-20.)

The Court agrees that Defendant waived any objection due to untimeliness. However, Plaintiff's motion to compel further responses is silent as to the sufficiency of the Requests for Production, and neither the motion nor the separate statement sets forth specific facts showing good cause to justify the discovery sought by the request, nor do they identify a disputed fact of consequence or explain how the discovery sought will tend to prove or disprove that fact or lead to other relevant evidence, as is required to grant such a motion. (Code Civ. Proc., § 2031.310, subd. (b)(1); Digital Music News, supra, 226 Cal.App.4th at 224.) Further, while Plaintiffs' motion requests further responses as to Request Nos. 1 through 5, Request Nos. 3 through 5 are not included in Plaintiff's separate statement.

Accordingly, Plaintiffs' request for further responses to Requests for Production Nos. 1 through 5 is DENIED.

d. Sanctions

Plaintiffs request monetary sanctions in the amount of \$4,6250 against Defendant and his counsel of record, Reza Sina and Sina Law Group, jointly and severally, for the reasonable attorneys' fees and costs incurred in bringing this motion. (Motion, p. 7:8-12.)

"The court shall impose monetary sanctions ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response ..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Defendant did not unsuccessfully oppose this motion, as he did not oppose at all. However, California Rules of Court rule 3.1348(a) provides that the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed. In light of the circumstances leading to the filing of the motion, including Defendant's failure to meet and confer in good faith, Defendant's agreement to provide supplemental responses only if Plaintiffs agreed to waive the sanctions ordered by this Court for Defendant's previous failure to comply with discovery, and Defendant's facially non-compliant responses, the Court determines monetary sanctions are warranted notwithstanding Defendant's non-opposition to the present motion.

Schneider states his hourly billing rate on this matter is \$375 per hour, and the request includes 2.5 hours spent attempting to meet and confer on the deficiencies raised in this motion and requesting an Informal Discovery Conference, 4.5 hours for drafting of this motion and preparing the required separate statement, and an anticipated 5 hours for reviewing the opposition, drafting the reply, and attending the hearing, plus \$60 for filing fees and \$65 for courtesy copy fees.

The Court notes that no opposition was filed, and thus, no review thereof or preparation of a reply was required. However, the Court also acknowledges Schneider's preparation of a brief reply declaration declaring Defendant's non-opposition to the motion. The Court finds Schneider's hourly billing rate and the hours requested are otherwise reasonable.

Accordingly, the Court GRANTS Plaintiffs' request for monetary sanctions in the amount of \$3,312.50, consisting of 2.5 hours at \$375/hr. for meet and confer attempts (\$937.50), 4.5 hours for the drafting of the present motion and separate statement at \$375/hr. (\$1,687.50), 1.5 hours for preparing the limited reply and attending the hearing on this matter at \$375/hr. (\$562.50), \$60 in filing fees, and \$65 in courtesy copy fees.

V. Conclusion

Plaintiffs Christopher Bui and Richard Lam's Motion to Compel Further Responses to First Set of Special Interrogatories, Form Interrogatories, and Requests for Production is GRANTED in part as to Special Interrogatories Nos. 1-3, 5, 7-14, 16-24; and Form Interrogatories Nos. 2.6, 50.3, 50.5, and 50.6. Defendant is ordered to provide code-compliant further responses to these requests without objection within 30 days of this Order.

Plaintiffs Christopher Bui and Richard Lam's Motion to Compel Further Responses to First Set of Special Interrogatories, Form Interrogatories, and Requests for Production is DENIED in part as to Special Interrogatories Nos. 4 and 6; Form Interrogatory No. 50.4; and Requests for Production Nos. 1-5.

Plaintiffs Christopher Bui and Richard Lam's Request for Monetary Sanctions is GRANTED against Defendant and his counsel in the amount of \$3,312.50.